"Civility allows for zealous representation, reduces clients' costs, better advances clients' interests, reduces stress, increases professional satisfaction, and promotes effective conflict resolution." -- OCBA Civility Guidelines

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N14
HON. RICHARD J. OBERHOLZER

Date: Monday, March 2, 2026, 9:00 a.m.

• All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at https://www.occourts.org/media-relations/civil.html prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and an instructional video are available on the court's website. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the initial appearance. All hearings are open to the public. The courtroom doors are open.

• You must provide your own court reporter (unless you have a fee waiver and request one in advance).

• Call the other side and ask if they will submit to the tentative ruling. If everyone submits, then call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk. The court will hold a hearing. The court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
101	**Alday vs Orange Coast Title Company of Southern California**	**Motion for Continuance of Trial** Defendant/Cross-Complainant Orange Coast Title Company of Southern California's ("OCTCSC") motion to continue trial and all trial related dates. Defendant OCTCSC has shown good cause for the trial continuance. (Rule of Court, Rule 3.1332, subds. (c), (d).)

		Tentative Ruling: Trial is continued from August 3, 2026 to November 9, 2026 in this department. All trial related deadlines shall be governed by the new trial date. Moving Party to give notice.
102	**Careful Consulting, LLC vs Pacific Health Staffing, LLC**	**Motion to Be Relieved as Counsel of Record** Jacob Gillick of Gillick Legal, APC ("Moving Counsel") moves to be relieved as counsel of record for Plaintiff, Careful Consulting, LLC, whose address is stated as "8 The Green, Suite A, Dover DE 19901." (See ROA 121, Judicial Council Form MC-051, Notice of Motion and Motion to Be Relieved as Counsel-Civil.) No opposition has been filed. California Rules of Court, rule 3.1362(d) states: "The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case. The notice may be by personal service, electronic service, or mail." Here, the Declaration in Support of Attorney's Motion to be Relieved as Counsel indicates that Moving Counsel served the client by mail at the client's last known address located at "8 The Green, Suite A, Dover, DE 19901," which was confirmed as current in the past 30 days. (Judicial Council Form MC-052, Declaration in Support of Attorney's Motion to be Relieved as Counsel-Civil, ¶ 3(a)(2)-(b)(1).) Said Declaration also provides that the motion papers were served electronically on Maha Akram, Moving Counsel's "contact with the client." (*Id.*, ¶ 3(b)(1)(d).) However, no proof of service has been filed. In addition, all moving and supporting papers must be served and filed at least 16 court days before the hearing, and the required 16-day period of notice before the hearing shall be increased by 10 calendar days if the place mailing or the place of address is outside the State of California but within the United States. (Code Civ. Proc. ¶¶ 1005(b), 1013(a).) Based on the above, mail service to an address in Delaware extends the 16-court day period of notice before the hearing by 10 calendar days. The instant motion was filed on February 4, 2026, for a hearing noticed for March 2, 2026. 16 court days

		before March 2, 2026, is February 4, 2026. Assuming that the motion papers were served on February 4, 2026, the instant motion was brought without sufficient notice. **Tentative Ruling**: The Motion is DENIED, without prejudice. In the alternative, the Court will consider continuing this hearing to April 13, 2026, at 9:00 am in Department N-14. Moving Counsel to serve the Minute Order for the March 2, 2026 hearing so that the client has notice of the continued hearing date, and to file a proof of service showing timely, proper service of the motion papers and the Minute Order. If Moving Counsel inadvertently did not serve the client on February 4, 2026, then the continued date of April 13, 2026, will allow for sufficient notice before the hearing (16 court days plus 10 calendar days). It is also noted the Proposed Order does not set forth the client's current or last known address and telephone number (ROA 117.) which must be corrected before the hearing. Moving Counsel to give notice.
103	**Castillo vs Andre-Boudin Bakeries, Inc.**	**Demurrer to Complaint** **Case Management Conference** Defendant Andre-Boudin Bakeries, Inc. ("Defendant") demurs to the first and only cause of action for violations of the Unruh Civil Rights Act pursuant to Civil Code section 51. "The Unruh Civil Rights Act provides: 'All persons within the jurisdiction of this state ... no matter what their ... disability ... are entitled to the full and equal accommodations, advantages, facilities, privileges, or services in all business establishments of every kind whatsoever.' " (Martin v. Thi E-Commerce, LLC (2023) 95 Cal.App.5th 521, 527 [citing Civ. Code, § 51, subd. (b)].) "A plaintiff can recover under the Unruh Civil Rights Act on two alternate theories: (1) a violation of the ADA [citation]; or (2) denial of access to a business establishment based on intentional discrimination." (Martin v. Thi E-Commerce, LLC (2023) 95 Cal.App.5th 521, 527 [citing Martinez v. San Diego County Credit Union (2020) 50 Cal.App.5th 1048, 1059].)

		1. Violation of ADA "To prevail on a Title III discrimination claim, the plaintiff must show that (1) she is disabled within the meaning of the ADA; (2) the defendant is a private entity that owns, leases, or operates a place of public accommodation; and (3) the plaintiff was denied public accommodations by the defendant because of her disability." (Martin v. Thi E-Commerce, LLC (2023) 95 Cal.App.5th 521, 528.) The court in Martin v. Thi E-Commerce, LLC (2023) 95 Cal.App.5th 521, 528 addressed "whether a stand-alone website (i.e., a website without any significant connection to a physical location open to the public) is a 'place of public accommodation.' " (Martin v. Thi E-Commerce, LLC (2023) 95 Cal.App.5th 521, 528.) Martin v. Thi E-Commerce, LLC (2023) 95 Cal.App.5th 521, 531 reached two conclusions and held: "first, the ADA unambiguously requires a physical location; second, even if the language were ambiguous, the unique history and regulation of the Internet counsel against interpreting the ADA as applying to the Internet." "[A] 'place of public accommodation' requires a physical location . . . because (1) it is the most natural usage of the phrase 'place of public accommodation'; (2) the examples listed in title 42 United States Code section 12181(7) are all places that traditionally operate out of a physical location open to the public; and (3) the relevant regulations define the phrase in terms of a 'facility,' which, in turn, is defined in terms of physical structures." (Martin v. Thi E-Commerce, LLC (2023) 95 Cal.App.5th 521, 531.) Thurston v. Midvale Corp. (2019) 39 Cal.App.5th 634, 643–644 held that Title III of the ADA applies to websites connected to a physical place of public accommodation. The Court reasoned: "In a society in which business is increasingly conducted online, excluding businesses that sell services through the Internet from the ADA would 'run afoul of the purposes of the ADA and would severely frustrate Congress's intent that individuals with disabilities fully enjoy the goods, services, privileges and advantages, available indiscriminately to other members of the general public.' " (National Assn. of the Deaf v. Netflix, Inc., supra, 869 F.Supp.2d at p. 200.) Excluding websites just because they are not built of brick and mortar

		runs counter to the purpose of the statute." (Thurston v. Midvale Corp. (2019) 39 Cal.App.5th 634, 643–644.) The Court in Thurston v. Midvale Corp. (2019) 39 Cal.App.5th 634, 643–644 further held there was a sufficient nexus between the business's website and its restaurant when "the website connects customers to the services of the restaurant." (Thurston v. Midvale Corp. (2019) 39 Cal.App.5th 634, 646.) *2. Intentional Discrimination* "[A] plaintiff seeking to establish a case under the Unruh Act must plead and prove intentional discrimination in public accommodations in violation of the terms of the Act." (Martin v. Thi E-Commerce, LLC (2023) 95 Cal.App.5th 521, 538.) "A disparate impact analysis or test does not apply to Unruh Act claims." (Ibid.) "Intentional discrimination requires 'willful, affirmative misconduct on the part of those who violate the Act.' " (Martin v. Thi E-Commerce, LLC (2023) 95 Cal.App.5th 521, 538.) "Nonetheless, ... evidence of disparate impact could be admitted in Unruh Civil Rights Act cases because 'such evidence may be probative of intentional discrimination in some cases." (Ibid.) *3. Analysis* The Court finds that Plaintiff has sufficiently pleaded her cause of action for violations of the Unruh Civil Rights Act pursuant to Civil Code section 51. As discussed above, a plaintiff can recover under the Unruh Civil Rights Act on two alternate theories: (1) a violation of the ADA [citation]; or (2) denial of access to a business establishment based on intentional discrimination. The Court finds that Plaintiff has sufficiently alleged a violation of the ADA. The Court therefore need not address whether Plaintiff was denied access to Defendant's business based on intentional discrimination. Here, Defendant's demurrer focuses solely on whether Plaintiff sufficiently alleges that she was denied public accommodations by Defendant because of her disability. The Court finds that Plaintiff has sufficiently alleged that (1) she is disabled within the meaning for the ADA, see Complaint, ¶¶ 1 and 9, and (2) Defendant is a private entity that owns, leases, or operates a place of public accommodation, see Complaint, ¶¶ 19- 20.

		The Court also finds that Plaintiff has sufficiently alleged that she was denied public accommodations by Defendant because of her disability. As discussed above, caselaw establishes that, when there is a sufficient nexus between the business's website and its restaurant, a defendant's website can be grounds for establishing that the plaintiff was denied public accommodation by the defendant because of her disability. Plaintiff alleges that "Defendant's Website provides consumers with access to an array of goods, services, and information related to Defendant's brick-and-mortar locations including product descriptions, online ordering, contact options, location information, career opportunities, pricing details, loyalty program sign-up, account sign-up, and/or many other benefits" and that such goods, services, and information on the website related to the restaurant are inaccessible to Plaintiff because of the barriers on Defendant's website. (Complaint, ¶¶ 20, 37, 44, 51.) For example, Plaintiff was unable to place an online order for pick up at the restaurant. (Complaint, ¶ 51.) In paragraph 54, Plaintiff alleges: "Because of the discrimination she encountered on the Website and her inability to independently access information and place an order on the Website, Plaintiff was forced to travel to Defendant's brick-and-mortar location in Huntington Beach on March 10, 2025, in person to learn about Defendant's products and make a purchase. When Plaintiff arrived, she asked to purchase the St. Patrick's Day gift basket she had seen on the Website but could not order. An employee at the restaurant told Plaintiff that she had to order the St. Patrick's Day gift basket online. Due to the inaccessibility of the Website, Plaintiff was prevented from ordering the gift basket online and was told she could not order it in person at the restaurant in Huntington Beach. The gift basked Plaintiff desired to purchase from Defendant is therefore only available to those who do not rely on SRS to access the internet." (Complaint, ¶ 54.) Plaintiff attempted to order from the restaurant online but "[w]hile attempting to navigate the Website, Plaintiff encountered multiple accessibility barriers for blind or visually-impaired people that include" (Complaint, ¶ 51.) "Plaintiff intended to order a gift basket for pick-up from Defendant's brick-and-mortar location located in Huntington Beach, California." (Complaint, ¶ 53.) Because of the website's

		inaccessibility, Plaintiff was unable to order the gift basket online. (Complaint, ¶ 53.) The Court finds the alleged facts establish a sufficient nexus between Defendant's website and its restaurant such that Plaintiff has alleged she was denied public accommodations by Defendant because of her disability. **Tentative Ruling**: The Demurrer is OVERRULED. Defendant shall file a responsive pleading within 20 days of notice of this ruling. Plaintiff to give notice.
105	**Felipe vs Apodaca**	**OSC re: Preliminary Injunction** **OFF CALENDAR**
106	**Groff vs Krumly**	**Demurrer to Amended Complaint** Nearly the same reasons as the court found in overruling the demurrer of the Defendant, BIGDELI D.D.S., are applicable in this demurrer of Dr. Krumly. The Defendant was allegedly only given consent by the Plaintiff to remove tooth number 17, but instead he removed tooth #18. The Plaintiff alleged sufficient facts to support a cause of action for medical battery against Dr. Krumly. As to the Fraudulent Concealment, Plaintiff pleads that the concealment was "intend[ed' to defraud plaintiff ands her father to avoid liability for the improper extraction of the wrong tooth." See FAC¶¶26, 27, 29. **Tentative Ruling**: Defendant's, NABIL AL KRUMLY, D.D.S., Demurrer to Plaintiff's causes of action for Medical Battery and Fraudulent Concealment is OVERRULED. Defendant to file an Answer within 20 days. Plaintiff to give notice.
107	**Ly vs City of Westminster**	**Motion for Leave to File Amended Complaint** . Pursuant to Code of Civil Procedure section 473, subdivision (a), the court may, "in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars…." (Code Civ. Proc., § 473, subd. (a).)

		"[T]he trial court has wide discretion in allowing the amendment of any pleading [citations], [and] as a matter of policy the ruling of the trial court in such matters will be upheld unless a manifest or gross abuse of discretion is shown." (Melican v. Regents of University of California (2007) 151 Cal.App.4th 168, 175.) "[T]he court's discretion will usually be exercised liberally to permit amendment of the pleadings." (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.) "The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (Ibid.) While there is authority which indicates that "even if a good amendment is proposed in proper form, unwarranted delay in presenting it may – of itself – be a valid reason for denial" (Eng v. Brown (2018) 21 Cal.App.5th 675, 707), a great deal of authority demonstrates that "[w]here no prejudice is shown to the adverse party, the liberal rule of allowance prevails." (Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 564.) Additionally, "[i]t is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment." (Berman v. Bromberg (1997) 56 Cal.App.4th 936, 945; See also Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048.) The proposed amendment would add two causes of action based on the same facts already pled in the Complaint. Specifically, Plaintiff seeks to plead statutory bases for Defendants' liability. Plaintiff admits that the leave to amend is sought due to arguments made in Defendants' motion for summary judgment regarding the sufficiency of the pleading. Because the underlying factual allegations which support the newly proposed claims have always been included in the operative pleading, Defendants have been on notice of the relevant facts throughout the entirety of this action. The only apparent prejudice to Defendants is that they have already incurred the expense of filing a summary judgment motion. Here, while a review of the record indicates Plaintiff delayed in seeking amendment, there is no other apparent prejudice to Defendants. Additionally, it is not clear that leave to amend would be futile. Defendants contend they have immunity to the proposed claims pursuant to Vehicle Code sections 17004 and 17004.7 because Defendant Officer Chavez was in pursuit of

		an actual or suspected lawbreaker at the time of the collision. However, whether those code sections apply involves determinations of fact that are beyond the scope of this motion. **Tentative Ruling**: The Motion for Leave to File First Amended Complaint brought by Plaintiff Khieng Ly is GRANTED, pursuant to Code of Civil Procedure section 473 Plaintiff shall file and serve the proposed First Amended Complaint within 10 days. Plaintiff to give notice.
108	**Miramar Food Hall Real Estate LLC vs Big Picture Concepts Design LLC**	**Motion to Set Aside/Vacate Default** Defendants Hospitality Development Group, Inc. ("HDG") and William Larson ("Larson") seek an order setting aside the defaults entered against them on 7/17/25 by Plaintiff Miramar Food Hall Real Estate LLC. Code of Civil Procedure §473(b) permits a court to grant relief from a judgment, dismissal, order or other proceeding taken against a party on the grounds of "mistake, inadvertence, surprise or excusable neglect." "Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (CCP §473(b).) "Because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default." (Elston v. City of Turlock (1985) 38 Cal.3d 227, 233; see Fasuyi v. Permatex, Inc. (2008) 167 Cal.App.4th 681, 696.) Thus, where the party in default moves promptly to seek relief, and no prejudice to the opposing party will result from setting aside the default and letting the case go to trial on the merits, "very slight evidence will be required to justify a court in setting aside the default." (Elston at 233 (internal quotes omitted); Fasuyi at 696.) "Unless inexcusable neglect is clear, the policy favoring trial on the merits prevails." (Elston at 235.) Here, Defendant Larson attests in his declaration that he erroneously believed that Cross-Defendant Landmark Food

		Halls, LLC ("Landmark") would defend Larson and HDG based on an indemnification clause in the Construction Management Agreement entered into between Landmark and HDG. (Larson Decl. ¶¶2-6; 11.) At the time, Larson was not represented by counsel. He tendered the claim to Landmark and also forwarded the Complaint to his insurance carrier. (Larson Decl. ¶¶6, 10.) The subject defaults were entered on 7/17/25. This motion was filed five months later, on 12/17/25. In opposition, Plaintiff contends that there was no mistake, inadvertence, surprise or excusable neglect and that Plaintiff will be prejudiced if the defaults are set aside. However, the only prejudice Plaintiff points to is the time and expense that Plaintiff would incur in litigating against Defendants. As stated above, unless inexcusable neglect is clear, the policy favoring trial on the merits prevails. Here, Defendants were unrepresented by counsel and made efforts—albeit misguided ones—to participate in the action. At this point, trial (scheduled with non-defaulting Defendant James Markham) is six months away, and Plaintiff has not demonstrated any prejudice of the sort that would outweigh Defendants' right to participate in a trial on the merits. **Tentative Ruling**: The motion to set aside the defaults is GRANTED. Defendants are to file their Answer within 10 days. Defendants to give notice
109	**Nguyen vs Beach Grove Dentistry**	**Motion for Summary Judgment and/or Adjudication** Defendants Minh D. Nguyen, D.D.S. and Minh Nguyen, D.D.S, a Dental Corporation seeks an order entering summary judgment in favor of Defendants and against Plaintiff, Trung Nguyen. *PROCEDURAL ISSUE:* When the notice of motion seeks only summary judgment, the presence of any triable issue requires denial of the motion. The court may not summarily adjudicate claims or defenses as to which no triable issue was raised unless requested in the notice of motion. [Homestead Sav. v. Sup.Ct. (Dividend Develop. Corp.) (1986) 179 CA3d 494, 498. (citing text)]

		Here, the Notice of Motion seeks summary judgment only. The notice of motion states, “This motion is made on the grounds that Plaintiff’s action for medical negligence has no merit as to Defendants, that no triable issue of material fact exists remaining for trial, and the Defendants are entitled to judgment as a matter of law.” However, the Complaint contains two causes of action: professional negligence, and lack of informed consent. Additionally, while Defendant identified no issues for adjudication in the Notice of Motion, the Separate Statement sets forth two issues: Issue 1: Defendants are entitled to Summary Judgment as to Plaintiff’s cause of action for Medical Malpractice as a matter of law because Defendants met the standard of care in all aspects of providing care and treatment to Plaintiff (Negligence Element Duty/Breach) Issue 2: Defendants are entitled to Summary Judgment as to Plaintiff’s cause of action for Medical Malpractice as a matter of law because no negligent act or omission by Defendants was the cause of, or a substantial factor in causing, Causation) (See Separate Statement ROA 63) Notably, neither of those “Issues” is directed at the 2nd cause of action for Lack of Informed Consent. Moreover this variance between the Notice of Motion and Separate Statement is a violation of CRC, rule 3.1350(b) requiring that “the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.” As such, there are no procedural grounds for granting the Motion. MERITS: The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. [Aguilar v. Atlantic Richfield Co. (2001) 25 C4th 826, 850.] A defendant moving for summary judgment must “show” that either: • one or more elements of the “cause of action … cannot be established”; OR

		• there is a complete defense to that cause of action. [CCP § 437c(p)(2).] Once defendants meet this burden, the burden shifts to plaintiff to prove the existence of a triable issue of fact regarding that element of its cause of action or that defense. If plaintiff is unable to do so, defendants are entitled to judgment as a matter of law. [Saelzler v. Advanced Group 400 (2001) 25 C4th 763, 780-781; Consumer Cause, Inc. v. SmileCare (2001) 91 CA4th 454, 468 (citing text)] Here, on 3/4/2024 Plaintiff Trung Nguyen filed a Complaint for: 1. PROFESSIONAL NEGLIGENCE - CODE OF CIVIL PROCEDURE §§ 340.5 AND 364 (Against All Defendants) 2. LACK OF INFORMED CONSENT (Against All Defendants) Plaintiff's Complaint is vague and simply pleads: 7. Defendants, and each of them, undertook the care and treatment of Plaintiff and rendered professional services in the diagnosis, care and treatment of Plaintiff beginning on or about June 3, 2022, and continuing thereafter in Orange County, including the failures associated with the inappropriate insertion of surgical tube(s) by Defendants, and their agents/employees into Plaintiff. 14. [Sic] As a result of the Defendants' negligent treatment, and failures during this treatment, TRUNG has suffered injuries and damages which has and will require TRUNG to undergo protracted painful and costly corrective dental procedures and treatment. Defendant submits the declaration of expert Alan G. Shelhamer, D.D.S. to opine as to the standard of care and causation. He indicates he is a maxillofacial surgeon who practices in the state of California. His CV also establishes he is qualified to opine as to implants. As to the standard of care, he opines: *The initial evaluation was within the standard of care (Shelhamer Decl.¶8.) *The level of detail in the consent documentation exceeds what is required under the standard of care (Id.)

		* The treatment plan developed and carried out by Dr. Nguyen was appropriate and based on clinical and radiographic findings. (Id.¶9.) * The implants were properly placed. (Id.¶11.) * The follow-up care, including implant monitoring and addressing complications, was also well within the standard of care. (Id.¶12.) *The records reflect that Dr. Nguyen remained communicative and diligent in his efforts to follow up and manage plaintiff's care, but plaintiff ultimately abandoned treatment before Dr. Nguten could address remaining post-operative treatment. (Id.¶14.) *Dr. Nguyen appropriately managed each instance of implant failure…(Id.¶18.) *Dr. Nguyen's fee schedule and billing practices were reasonable…(Id.¶19.) *…the informed consent provided was more than adequate, and there is no evidence that the plaintiff was misled or lacked understanding of the procedures performed. (Id.¶20.) *…the restoration of all other implants without modification confirms that Dr. Nguyen's surgical placement was successful and met the standard of care. (Id¶23.) *…the plaintiff's complaints of headaches, infections, and emotional distress appear unsupported by any clinical records beyond his own statements…Plaintiff's records and discovery responses are void of any follow up care to address the patient's subjective complaints. In my professional opinion, many of these complaints are not attributable to any aspect of Dr. Nguyen's treatment and are preexisting, psychosomatic, or unrelated. (Id.¶25.) As to causation, Dr. Shelhamer opines, ¶27. Based on my experience, education, qualifications and review of pertinent materials in this matter, it is my opinion that to a reasonable degree of medical probability, no negligent act or omission by Dr. Trung Nguyen, D.D.S., [sic] caused or contributed to any injury or damages claimed by Plaintiff Trung Nguyen.

		As such, Defendant adequately sustained its initial, substantive burden, and the burden thus shifts to Plaintiff to create a triable issue of material fact. To that end, Plaintiff submits the Declaration of Stephen Howard who is a dentist and orthodontist licensed to practice in the State of California. His CV states, "Oral hygiene care, cosmetic make-overs, orthodontics and implant/crown cases are all apart of the treatment provided." [Emphasis added.] As to standard of care, he opines: * The failures of Dr. Nguyen's treatment, specifically the complete failures of the three implants at teeth numbers 2, 3 and 15, and the partial failures at teeth numbers 14, 18 and 19, were a result for improper placement techniques by Dr. Nguyen that fell below the standard of care. (Howard Decl. ¶14.) * The failures of Dr. Nguyen's treatment were caused by his technique which is a breach of the standard of care. The breaches of the standard of care as described herein, could not have happened in the absence of negligence, and created and caused the negative outcome in this case, specifically the complete failures of the three implants at teeth numbers 2, 3 and 15, and the partial failures at teeth numbers 14, 18 and 19.(Id¶17.) *…the lack of response from Dr. Nguyen to Mr. Nguyen's attempted phone and text contacts between March 13, 2023, and April 26, 2023 constitutes abandonment of a patient, which falls well below the standard of care and also violates Business and Professions Code section 1680. (Id¶19.) As to causation, he opines: 20. It is my opinion to a reasonable degree of medical and dental certainty that Dr. Trung Nguyen DDS and his corporation Minh Nguyen, DDS breached the applicable standard of care and Business and Professions Code section 1680 in the and follow up care of Plaintiff Trung Nguyen by abandoning the patient, and this breach of care caused and substantially contributed to Plaintiff Trung Nguyen s injuries and damages claimed in this case, including the severe pain Mr. Nguyen complained to Dr. Nguyen of in his text message communications.

		21. Finally, based on my background, education and experience, it is my opinion to a reasonable degree of medical probability that the care and treatment, as well as the cost for the care and treatment, provided by Dr. Park to treat Mr. Nguyen to remediate Dr. Nguyen s treatment was reasonable and necessary. As such, there are triable issues of material fact as to standard of care and causation. **Tentative Ruling:** The Motion for Summary Judgment and/or Adjudication is DENIED on the merits. Plaintiff's objections are improperly formatted and will not be considered. Plaintiff to give notice.
110	**Ramakrishhnan vs Chen**	**Motion for Attorneys' Fees and Costs** A prevailing defendant is entitled to recover reasonable attorney fees in connection with the appeal of an anti-SLAPP order. (Wanland v. Law Offices of Mastagni, Holstedt & Chiurazzi (2006) 141 Cal.App.4th 15, 21; see § 425.16, subd. (c).) In awarding attorney fees under section 425.16, subdivision (c), courts use the "lodestar adjustment method." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1136.) This method begins with a touchstone or lodestar figure "based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney … involved in the presentation of the case.' " (Id. at pp. 1131-1132.) "In referring to 'reasonable' compensation, … trial courts must carefully review attorney documentation of hours expended; 'padding' in the form of inefficient or duplicative efforts is not subject to compensation." (Id. at p. 1132.) The lodestar may then be adjusted upward or downward based on several factors, including "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award." (Ibid.) *Attorneys' Fees* When determining a reasonable attorney fees award using the lodestar method, the court begins by deciding the reasonable

		hours the prevailing party's attorney spent on the case and multiplies that number by the prevailing hourly rate for private attorneys in the community who conduct noncontingent litigation of the same type. (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 998; see also Environmental Protection Info. Ctr. v. California Dep't of Forestry & Fire Protection (2010) 190 Cal.App.4th 217, 248.) The court may rely on personal knowledge and familiarity with the legal market in setting a reasonable hourly rate. (Heritage Pac. Fin., LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009.) The court finds LBMMC's counsel's rate of $600/hr for Joseph M. Preis and Oliver B. Dreger and $450/hr for Richard K. Angel and Savanna L. Basso reasonable. Having reviewed and considered LBMMC's evidence, and having presided in contract cases, the court finds this hourly rate reasonable for attorneys in the community who conduct litigation of the same type as in this case. The court has read and considered LBMMC's moving papers, counsel's invoices, and LBMMC's other evidence. Based on that review, the court finds that certain entries were excessive and does not award fees for that work. Applying the above hourly rates and eliminating entries for work that is not reasonable or necessary, Oxygen Funding attorney's fees in the total amount of $82,890.00 is reasonable. Plaintiff contends the attorneys' fee award should be limited to an amount that is sufficient for deterrence. This argument, however, is not supported by any applicable law. (People v. Stanley (1995) 10 Cal.4th 764, 793) [contention is waived if not supported by legal authority]; Interinsurance Exchange v. Collins (1994) 30 Cal.App.4th 1445, 1448 [same].) Code of Civil Procedure section 425.16, subdivision (c) expressly provides that litigants prevailing on their anti-SLAPP motions are entitled to their attorneys' fees and costs. There is nothing showing equitable factors, such a limitation for deterrence, can be considered in determining if a prevailing moving party is entitled to its attorneys' fees and costs *Costs* LBMMC claims costs for filing fees and service fees, both of which are permitted pursuant to Code of Civil Procedure section 1033.5. (See Code Civ. Proc., § 1033.5, subds. (a)(1) and (a)(14); Angel Decl. ¶ 5, Exh. 1.)

		Tentative Ruling: Defendant Long Beach Memorial Medical Center's ("LBMMC") motion for attorneys' fees and costs is GRANTED. LBMMC is awarded attorneys' fees in the amount of $82,890.00 and costs in the amount of $500.40. LBMMC's Defendant Long Beach Memorial Medical Center to give notice.
111	**Reyes vs Ford Motor Company**	**Motion for Attorney Fees** Plaintiff, John Reyes ("Plaintiff"), moves for an order for attorney's fees in the amount of $30,756.60 and costs in the amount of $3,124.90 pursuant to Civil Code section 1794(d). Plaintiff contends that Plaintiff's attorneys of record, Joseph Kaufman & Associates, billed a total of $25,630.50 in fees, and $3,124.90 in costs in this matter. Plaintiff seeks a 1.2 multiplier on the fees, and through this Motion seeks $30,756.60 in attorneys' fees and $3,124.90 in costs. Plaintiff contends that his attorney's hourly rates are reasonable at $595 per hour for shareholder Joseph Kaufman, $375 per hour for associate attorney Scott A. Sanchez, and $175 per hour for paralegal Melissa Lopez, and that Plaintiff's attorneys' incurred a reasonable number of hours totaling 65.1 hours with work performed as follows: Joseph A. Kaufman for 8.9 hours, Scott A. Sanchez for 51.9 hours, and Melissa Lopez for 4.3 hours. Ford contends that the evidentiary showing offered in support of the hourly rates is insufficient, that the hours incurred are not reasonable, excessive, duplicative, and speculative, and that the reasonable number of hours is 48.8 hours with attorneys Mr. Kaufman for 4.7 hours at $500 per hour, Mr. Sanchez for 41 hours at $325 per hour, and Ms. Lopez for 2.3 hours at $150 per hour, such that a reasonable lodestar is approximately $16,000. Under the Song-Beverly Consumer Warranty Act (Civil Code §§ 1790 et seq.), only those attorney's fees and costs "determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution" of the action are recoverable. (Levy v. Toyota Motor Sales, U.S.A., Inc. (1992) 4 Cal.App.4th 770, 775; Civil Code § 1794(d).)

		Determining a reasonable attorney fee award in Song-Beverly Act cases " 'ordinarily begins with the "lodestar," [which is] the number of hours reasonably expended multiplied by the reasonable hourly rate.' " (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1134, 104 Cal.Rptr.2d 377, 17 P.3d 735.) The lodestar may "then be adjusted based on factors specific to the case, in order to fix the fee at the fair market value of the legal services provided." (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36, 241 Cal.Rptr.3d 263 (Warren).) A court assessing a claim for attorney's fees under Civil Code section 1794(d) uses the lodestar method to determine the reasonableness of such a claim. (Mikhaeilpoor v. BMW of North America (2020) 48 Cal.App.5th 240, 247-248 ("Mikhaeilpoor").) " 'The plain wording of the statute requires the trial court to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of the time spent and the amount charged . . . . "It requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount." . . . [The] prevailing party has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount.' [Citation.]" (McKenzie v. Ford Motor Company (2015) 238 Cal.App.4th 695, 698, 703; Mikhaeilpoor, supra, 48 Cal.App.5th at p. 247 [same].) When attorney fees are recoverable by statute, the reasonable attorney fees incurred in bringing the motion are also recoverable. (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 1002.) *Prevailing Party* There is no dispute that Plaintiff is the prevailing party and entitled to attorneys' fees and costs under Civil Code section 1794(d).

		Reasonable Hourly Rate Plaintiff contends that the hourly rates requested by shareholder Joseph Kaufman ($595), associate attorney Scott A. Sanchez ($375), and paralegal Melissa Lopez ($175) are reasonable. Ford contends that the hourly rates requests are not supported and that the following hourly rates reasonable: Mr. Kaufman at $500 per hour, Mr. Sanchez at $325 per hour, and Ms. Lopez for at $150 per hour. For contends that Plaintiff's requested hourly rates are not supported by competent evidence of the prevailing Orange County market rate for comparable non-complex Song-Beverly litigation. In determining a reasonable rate for the attorney's services, courts usually consider: (1) the prevailing rate charged by attorneys of similar skill and experience for comparable legal services in the community; (2) the nature of the work performed; and (3) the attorney's customary billing rates. (See Serrano v. Unruh (1982) 32 Cal.3d 621, 643.) The reasonable hourly rate is that prevailing in the community for similar work. (In re Tobacco Cases I (2013) 216 Cal.App.4th 570, 582.) "In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases." (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 41 [citations omitted].) Mr. Kaufman provides that he has been handling lemon law cases from at least May 2016, and has spent 22 years defending and prosecuting lemon law cases. (Declaration of Joseph A. Kaufman ("Kaufman Decl."), ¶¶ 3-4.) Mr. Kaufman also provides that his 2023-2025 hourly rate of $595 per hour has been approved as reasonable in 23 cases. (Id., ¶ 7.) The Court finds the $595 hourly rate for Mr. Kaufman to be reasonable and commensurate with the prevailing rates charged by consumer attorneys of similar experience practicing within the community of Orange County.

		The evidence submitted indicates that Mr. Sanchez has been working at Joseph Kaufman & Associates, Inc. since shortly after he graduated from Loyola Law School in 2023, that he was admitted to the bar on November 23, 2023, that he has handled lemon law cases exclusively on behalf of consumers, that he is an associate attorney with more than 2.5 years' experience. (Declaration of Scott A. Sanchez ("Sanchez Decl."), ¶¶ 15-16; Kaufman Decl., ¶ 13.) Mr. Sanchez also provides that his $375 hourly rate has been approved in other cases in Los Angeles County and Orange County, and other neighboring counties for attorneys' fees motions and discovery sanction awards. (Sanchez Decl., ¶ 18.) The Court finds the $375 hourly rate for associate attorney Sanchez to be reasonable and commensurate with the prevailing rates charged by consumer attorneys of similar experience practicing within the community of Orange County. Lastly, the evidence submitted that Ms. Lopez is a paralegal with more than three years' experience and seeks $175 per hour. (Kaufman Decl., ¶ 13.) Given her experience, the Court finds that a reduced $150 hourly rate for paralegal Lopez to be reasonable. Although Ford argues that the hourly rates requested are not reasonable, Ford present no evidence supporting that its requested reduced rates are the reasonable, prevailing rates in the community. Ford's counsel merely states, without foundation and conclusory fashion, "I further believe that the hourly rates requested exceed the prevailing Orange County market rate for comparable non-complex Song-Beverly litigation." (Declaration of Matthew M. Proudfoot, ¶ 7.) *Reasonableness of Hours Incurred* Plaintiff contends that the actual time requested by Plaintiff's counsel totaling 65.1 was reasonably expended, with Mr. Kaufman incurring 8.9 hours primarily setting the trial, settlement, and discovery strategies, Mr. Sanchez incurring 51.9 hours as the primary attorney for the case, handling all aspects of this litigation, and Ms. Lopez expending 4.3 hours on tasks mostly related to discovery and coordination of the vehicle surrender. Ford contends that the billing records reflect excessive and duplicative hours in the form of excessive partner oversight, duplicative document review, administrative tasks billed at attorney rates, excessive deposition preparation and PMQ

		deposition preparation for this case, billing written discovery propounded during the statutory discovery stay imposed by Code of Civil Procedure section 871.26(e), and speculative time for the instant motion. Ford asserts that after reducing the excessive and duplicative hours by approximately 16.3 hours, the reasonable number of hours is 48.8 with the reasonable number of hours totaling 48.8 with Mr. Kaufman for 4.7 hours and Mr. Sanchez at 41 hours with no reduction for Ms. Lopez. Ford's counsel submits a breakdown of excessive entries attached to Exhibit A of the Declaration of Matthew M. Proudfoot. This "Line-Item Reduction Analysis" consists arguments that the time expended for certain items were excessive or duplicative, but does not otherwise establish that the particular entries are excessive. To oppose a showing of a fee request supported by declarations describing the efforts taken with billing records to establish the hours of work, a party may "attack the itemized billings with evidence that the fees claimed were not appropriate, or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were unreasonable." (Premier Med. Mgmt. Sys. v. Cal. Ins. Guarantee Assoc. (2008) 163 Cal.App.4th 550, 563-564.) "General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Id. at p. 564.) Rather, Ford's counsel makes a general statement that given counsels' experience in handling and reviewing numerous Song-Beverly matters, a reasonable number of hours for a case of this procedural posture would not exceed approximately 15 to 50 hours. (Proudfoot Decl., ¶ 6.) Ford's counsel's declaration also refers to the use of form documents in lemon law cases, but makes no argument as to the relevance of this statement. Further, Ford argues that Plaintiff billed time drafting and serving written discovery, including Special Interrogatories, Form Interrogatories, Requests for Production, Requests for Admission, and related deposition notices, but no such deduction appears in the Ford's "Line-Item Reduction Analysis." Mr. Kaufman provides that he handled the trial, settlement and discovery strategies, and that Mr. Sanchez was the primarily handling attorney from March 2025, handling all aspects of the case, through settlement. (Kaufman Decl., ¶

		13.) As such, Mr. Kaufman would need to review documents related to settlement and discovery, and his independent review is not necessarily duplicative. Mr. Kaufman's 8.9 hours are reasonably incurred and necessary. The Court does not otherwise find Mr. Sanchez's claimed hours for entries on 5/27, 8/11, 8/12, 8/19, and 9/12, as well as entries for repurchase calculations, to be excessive. The Court finds there were administrative tasks billed by Mr. Sanchez, including the entry on 4/30/25 for 0.2 hours for multiple correspondence w/subpoena company re: cost of requesting copies. The Court deducts 0.2 hours from Mr. Sanchez's 51.9 hours for a reduced total of 51.7 hours. Ford does not identify the "various" entries to which it objects as administrative tasks billed by an attorney. Time expended for discovery beyond that permitted under Code of Civil Procedure section 871.26, which was effective on January 1, 2025, is not reasonable. Section 871.26(e) provides that "[e]xcept as provided in subdivisions (b) and (c), all other discovery shall be stayed until mediation is concluded. If the case is not resolved at the conclusion of mediation, standard discovery procedures . . . shall apply, ..." (Code Civ. Proc. § 871.26(e).) Subdivisions (b) and (c) concern initial disclosures and documents, and initial depositions of the plaintiff and the defendant. The billing records reflects entries related to scheduling mediation in July 2025. All time incurred related to discovery beyond that permitted under Section 871.26 shall be deducted. This includes entries on 4/2/25 for 1.6 hours by Mr. Sanchez for drafting special interrogatories, form interrogatories, requests for production, and requests for admission and on 5/15/25 for 0.4 hours for Ford's objections citing Section 871.26. Therefore, two hours is deducted from Mr. Sanchez's 51.7 hours for a total of 49.7 hours. Lastly, the Court finds that the fees for the instant fee motion are reasonable consisting of work by Mr. Sanchez for 3.0 hours to draft the motion and supporting documents, 2.0 hours to review the opposition and draft a reply, and 1.0 hours to prepare for and attend the feel motion hearing, to be reasonable. The reply provides that Plaintiff actually incurred 4.0 hours to draft the reply, which is reasonable. (Reply Declaration of Scott A. Sanchez, ¶ 2.) Adding two hours for the reply results in a total number of 51.7 hours for Mr. Sanchez. Ford has no objection to Ms. Lopez's hours.

		Based on the foregoing, the lodestar amount for fees that have been reasonably incurred totals $25,328 consisting of Mr. Kaufman at $595 per hour for 8.9 hours, Mr. Sanchez at $375 per hour for 51.7 hours, and Ms. Lopez at $150 per hour for 4.3 hours. *Multiplier* Plaintiff contends that a 1.2 multiplier should be granted based on the exceptional judgment entered in Plaintiff's favor, the contingent risks inherent in pursuing this case, and the delay in payment. "The amount of attorney fees awarded pursuant to the lodestar adjustment method may be increased or decreased." (Mikhaeilpoor v. BMW of North America (2020) 48 Cal.App.5th 240, 247.) "The trial court is neither foreclosed from, nor required to, award a multiplier. [Citations.]" (Ibid.) The lodestar may be adjusted based on factors including (1) the novelty of and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ketchum, supra, 24 Cal.4th at p. 1132.) "Such fee enhancements are intended to compensate for the risk of loss generally in contingency cases as a class. [Citation.]" (Id. at p. 1133.) The Court finds that this was as straightforward case under the Song-Beverly Act that involved no complex issues, that there was no significant delay as this case settled in about nine months, and that the contingent nature of the fee award does not warrant a multiplier. Plaintiff's requested multiplier is DENIED. *Costs* Plaintiff filed a Memorandum of Costs for $3,124.90 contemporaneously with this Motion. " 'The right to recover any of the costs of a civil action "is determined entirely by statute." ' [Citation.]" (Charton v. Harkey (2016) 247 Cal.app.4th 730, 737.) " 'Section 1032 governs the award of costs of trial court litigation.' [Citation.]" (Ibid.) The prevailing party is entitled to costs as a matter of right in any action or proceeding, except as otherwise provided by statute. (Code Civ. Proc. § 1032(b).) A prevailing

		party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. "If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary." (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1266.) "There is no requirement that copies of bills, invoices, statements, or any such documents be attached to the memorandum. Only if the costs have been put in issue via a motion to tax costs must supporting documentation be submitted. [Citation.]" (Jones, supra, 63 Cal.App.4th at p. 1267.) Here, Plaintiff served a notice of entry of judgment on January 8, 2026 (ROA 46). The instant motion for attorney fees was filed on January 16, 2026, and includes a Memorandum of Costs claiming costs totaling $3,124.90 for filing and motion fees, deposition costs, service of process, and other costs for photocopies, postage, business records, and mediation. (See Ex. 2 to Sanchez Decl.) The Memorandum of Costs was timely filed. Ford makes no objection to the costs. **Tentative Ruling**: The Court GRANTS Plaintiff attorneys' fees in the lodestar amount of $25,328. The Court GRANTS costs in the amount of $3,124.90. The Court SUSTAINS Plaintiff's objections to the Declaration of Matthew Proudfoot as to Objection Nos. 2-4. Objection No. 1 is OVERRULED. Plaintiff to give notice
112	**Torossian vs Bertram**	**Motion to Strike Answer** Plaintiff Jack Torossian ("Plaintiff") moves to strike all thirty-seven (37) affirmative defenses asserted in the Answer filed by Defendants William Gerald Bertram and The Bertram Family Trust (collectively "Defendants") pursuant to Code of Civil Procedure section 436 subdivision (a).

		Timeliness: A plaintiff has 10 days after service of an answer to file a demurrer to the answer. (Code Civ. Proc., § 430.40, subd. (a).) A motion to strike must be brought "within the time allowed to respond to a pleading." (Code Civ. Proc., § 435, subd. (b)(1).) Because a motion to strike and a demurrer must be filed concurrently, a motion to strike an answer must likewise be filed within 10 days after service of the answer. (Code Civ. Proc., § 435, subd. (b); Cal. Rules of Court, rule 3.1322(b).) Here, Defendants filed their Answer on August 25, 2025. (ROA No. 69.) Plaintiff did not file the pending motion to strike until September 10, 2025, 16 days later. Accordingly, the motion is untimely. *Meet and Confer:* Before filing a motion to strike, the moving party must meet and confer in person, by telephone, or by video conference to attempt to resolve the objections. (Code Civ. Proc., § 435.5.) The meet and confer must occur at least five days before the motion is due, and a declaration describing those efforts and their outcome must be filed with the motion. (Code Civ. Proc., § 435.5, subd. (a)(2)–(3).) However, section 435.5 contains no mechanism to compel compliance, and an insufficient meet-and-confer effort is not grounds to grant or deny the motion. (Code Civ. Proc., § 435.5, subd. (a)(4).) Here, the motion is not accompanied by a meet and confer declaration. *Motion to Strike:* A motion to strike may be brought to remove any irrelevant, false, or improper matter in a pleading, or to strike any pleading or portion thereof not filed in conformity with California law, court rules, or a court order. (Code Civ. Proc., § 436.) As with a demurrer, the grounds for a motion to strike must appear on the face of the challenged pleading or from matters subject to judicial notice, such as the court's own records. (Code Civ. Proc., § 437; CPF Agency Corp. v. R&S Towing Service (2005) 132 Cal.App.4th 1014, 1032.) Under California Rules of Court, rule 3.1113(b), a memorandum must set forth the facts, law, argument, and supporting authority for the relief sought.

		Here, Plaintiff generally asserts the affirmative defenses are boilerplate, unsupported, and contradicted by the lease and verified allegations, but does not explain how any specific defense is legally insufficient. The motion relies on generalized conclusions rather than reasoned legal analysis and fails to demonstrate the challenged affirmative defenses are irrelevant, false, or improper. The foregoing defects, including untimeliness, fail to substantively address the challenged defenses. **Tentative Ruling:** The Motion to Strike the Answer is DENIED. Defendants to give notice